MEMORANDUM: Analysis of Ross's Answer and Discovery (Plaintiff's Perspective)

Case: *Brendan Ngwa Nforbi v. Ross Stores, Inc., et al.*, Santa Clara County Superior Court No. 26CV501995 (Hon. Vince Parrett, Dept. 16) **Prepared:** October 15, 2026 **Papers analyzed (all served Oct 15, 2026 by Vogl Meredith Burke & Streza LLP, E. Forrest Shryock Jr. / Raenalene C. Musni):** (1) Verified Answer (18 pp., including the verification and proof of service); (2) Special Interrogatories, Set One (27); (3) Form Interrogatories–General (DISC-001), Set One; (4) Requests for Production, Set One (24); (5) Notice of Posting Jury Fees. **Compared against:** the conformed Verified Complaint, filed Aug 26, 2026 (**¶¶** 1–129, three causes of action).

This is a working analysis for a self-represented litigant. It is not legal advice from a licensed attorney. Before relying on any rule or deadline, check the current statute text and the Santa Clara local rules.

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1. Executive Summary

1. **The answer is procedurally defective in several ways that work in your favor.**
2. It invokes **CCP § 431.30(d)**, the subsection that permits a *general* denial when the complaint is **unverified**. Your complaint is verified, so § 431.30(e) controls, and denials must be made positively or on information and belief.
3. About **22 paragraphs** are answered with **"can neither admit nor deny,"** which is neither a denial nor a statement that Ross lacks information or belief.
4. **Complaint ¶¶ 1–21, 85–86 and 129 are not answered at all.** These include ¶ 10 (operation of the store and employment of DOE 1), ¶ 12 (DOE 1 was loss-prevention personnel) and ¶ 15 (course and scope of employment).
5. Under **CCP § 431.20(a)**, material allegations that are not controverted are taken as true.
6. **Ross made major admissions.** It admits:
7. you entered the Sunnyvale store on the night of Aug 25, 2026;
8. no receipt was requested; you were not searched; police were not called;
9. you were never accused of taking clothing or any other Ross merchandise;
10. no employee said anyone saw you take anything; no Ross merchandise was recovered; no EAS alarm sounded;
11. **the sole asserted basis for the stop was the beverage you carried into the store in open view five minutes after buying it next door** (¶ 57);
12. the cashier witnessed the encounter, and cameras covered the entrance and "captured the incident."

Together, these admissions go most of the way toward defeating the probable-cause element of the merchant's privilege. 3. **All 16 affirmative defenses are boilerplate.** They plead no facts, as *FPI Development, Inc. v. Nakashima* (1991) 231 Cal.App.3d 367 requires. Several are negligence or premises defenses that do not fit intentional-tort or Unruh claims: accidental injury, assumption of risk, comparative negligence, lack of notice, and Prop 51 apportionment. Only the **First (shopkeeper's privilege)** is a real defense, and even it is pleaded without facts. 4. **Answer-related deadline:** the safe date to file a demurrer or motion to strike is **Monday, Oct 26, 2026**. A meet-and-confer is required first under § 430.41 (and § 435.5 for a motion to strike). If you cannot finish it in time, file a § 430.41(a)(2) declaration by **Oct 26**, which automatically extends the deadline 30 days to **Wed, Nov 25, 2026**. 5. **Discovery responses:** all three sets are due **Tuesday, Nov 17, 2026** (the conservative email-service computation). The latest arguable date, using the mail-service extension and Ross's own 35-day instruction, is Nov 19. Calendar Nov 17. 6. **Strategy recommendation:** do **not** rush a demurrer aimed at the unanswered paragraphs, because it would simply prompt Ross to cure them. Use them as

admissions and lock them in with Requests for Admission. Instead, **(a)** send a meet-and-confer letter covering the defects and the defenses, **(b)** if needed, file a targeted demurrer or motion to strike against the inapplicable boilerplate defenses, and **(c)** serve your own discovery now. That discovery should include **Form Interrogatory 15.1** (facts behind each denial and defense), DOE 1's identity, the video, loss-prevention policies, and stop logs.

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2. The Answer: Compliance with CCP §§ 431.20 and 431.30

2.1 Governing rules

- **§ 431.30(b):** an answer must contain a general or specific denial of the material allegations it controverts, plus a statement of any new matter constituting a defense.
- **§ 431.30(d):** a *general* denial is permitted **only if the complaint is not verified** (limited civil cases aside).
- **§ 431.30(e):** when the complaint is verified, denials must be made **positively or according to the information and belief** of the defendant. A defendant without enough information or belief may deny on that ground, but it has to *say so*.
- **§ 431.30(g):** defenses must be separately stated and must refer to the causes of action they are intended to answer.
- **§ 431.20(a):** every material allegation of the complaint that the answer does not controvert is **taken as true** for purposes of the action.
- **§ 446:** an answer to a verified complaint must itself be verified. When a corporation is a party, verification may be made by **any officer** of the corporation. An attorney may verify only in limited circumstances.

2.2 Defects identified

#	Defect	Where	Significance
A	Cites **§ 431.30(d)**, the subsection for general denials of *unverified* complaints	Answer p.1, l.21	Shows the wrong standard was used. It supports the argument that the denials do not meet § 431.30(e).
B	**"Can neither admit nor deny"** used with no statement that Ross lacks information or belief	Answer ¶¶ 1–3, 5–6, 8, 10–15, 22, 35, 38, 40, 43–44, 46–47, 56, 58, 63 (complaint ¶¶ 22–24, 26–27, 29, 31–36, 43, 56, 59, 61, 64–65, 67–68, 77, 79, 84)	This is not a denial in any form § 431.30(e) recognizes. Many of these facts are within Ross's own knowledge, such as what its cameras recorded (¶ 31, ¶ 61) and whether you concealed merchandise (¶ 34). Argue these paragraphs are uncontroverted and deemed admitted under § 431.20(a), or at least that the answer is uncertain and those portions should be stricken.
C	**Entire sections unanswered:** ¶¶ 1–5 (Introduction), 6–17 (Parties, including ¶ 10 operation and employment, ¶ 12 DOE 1 as LP personnel, ¶¶ 15–17 course and scope and respondeat superior), 18–	Answer skips from ¶ 84 to ¶ 87 and starts at ¶ 22	**¶¶ 10, 12 and 15 are material factual allegations and are now deemed admitted** (§ 431.20(a)). Legal conclusions (e.g. ¶ 16, "vicariously liable") are not "material allegations" and admit nothing. Expect Ross to seek leave to amend once you point this out.

#	Defect	Where	Significance
	21 (Jurisdiction/Venue), 85–86 (preservation demand and notice), 129 (jury demand)		
D	Confusing paragraph mapping. Each answer paragraph says "In answer to paragraph 22…" and then responds to "paragraph 1 under 'FACTUAL ALLEGATIONS'." The complaint is numbered continuously, so there is no "paragraph 1 under FACTUAL ALLEGATIONS."	Throughout	Read literally, the relative numbering does line up (answer ¶ N addresses complaint ¶ N+21 in Part IV, and the same scheme continues in later sections). It still creates ambiguity, which supports uncertainty (§ 430.20(b)). Answer ¶ 64, addressing complaint ¶ 87, "realleges and incorporates…in tandem with paragraph 1" and does not answer anything.
E	Typos: "BRENDANT NGWA NFORBI" (p.1 l.20); "answering Defendants **an** neither admit" (¶ 3); "neither admit nor deny any **all** allegations" (¶ 14); "ROPOUNDING PARTY" on the discovery; "**San** Clara County" on the verification	Various	Cosmetic. They show a rushed product but are not independent grounds for relief. Do not lead with them.
F	**Purports to answer for "DOE 1, and DOES 2 through 20"**, while the signature block says counsel represents only Ross Stores, Inc. and Ross Dress for Less, Inc. The defense caption reads "DOES 2 through **30**."	Answer p.1 l.19–20; all captions	**Correction to the premise:** your conformed complaint names **DOES 2 through 20** (caption ¶ 13; Third Cause of Action against "Does 2 through 20"). The "30" in Ross's captions is *their* error. Unidentified, unserved Doe defendants cannot appear through counsel who does not represent them. Ask counsel in writing whether they represent DOE 1 (the LP employee). If they do, demand her true name, which ¶ 12 alleges Ross knows, so you can amend under CCP § 474. If they do not, the Doe answer is a nullity.

#	Defect	Where	Significance
G	**Verification** signed by "Rachel De la Cruz," who says only that she is "authorized to make this declaration on behalf of" both Ross entities. She states no title or office. Executed in **Sunnyvale** on **Oct 8, 2026**, a week before the answer was dated (Oct 15).	Answer p.17	§ 446 contemplates verification by an **officer** of the corporation. The declarant does not identify herself as an officer, and a Sunnyvale signature suggests a store-level employee. One declarant signs for **two separate corporations** without saying her role at either. The Oct 8 date raises the question of whether she verified the final text. **Practical value:** she is likely a percipient or store-management witness. Identify her in your interrogatories and consider deposing her. A defective verification can make the answer treatable as unverified, but courts usually allow a cure, so use this as leverage rather than as a standalone motion.
H	Prayer seeks **attorneys' fees** for Defendants	Prayer ¶ 3	No contract or statutory basis is pleaded. Raise it in meet-and-confer. It can be addressed in a motion to strike (§ 436(a): irrelevant or improper matter).

2.3 Key admissions (cite these in future motions and at the CMC)

Complaint ¶	Admitted fact
25	Sprouts neighbors the Sunnyvale Ross (partial; "detached")
26	**Plaintiff entered the store on the night of Aug 25, 2026**
31	Surveillance cameras cover the store entrance
37	At about 9:00 p.m., Plaintiff walked toward the exit
41	Employees did not touch Plaintiff (consistent with your theory: no touching needed)
46	Plaintiff asked "Do you people sell Celsius drinks here?"
51	**Plaintiff was not asked to produce a receipt**
52	**Plaintiff was not searched**
53	**Law enforcement was not summoned; no police report**
54	**Plaintiff was never accused of taking any Ross merchandise**
55	**No employee stated anyone observed Plaintiff take, conceal or attempt to remove merchandise**
56	**No Ross merchandise recovered; no EAS alarm sounded**

Complaint ¶	Admitted fact
57	**"The sole asserted basis for stopping Plaintiff was the beverage he had carried into the store in open view five minutes after buying it next door."** This is the most important admission. It concedes there was a *stop*, that the drink was carried in openly, and that it came from next door.
58	The cashier witnessed the detention from close proximity
61	Surveillance cameras **captured the incident**
69	Plaintiff is Black; DOE 1 is white; the store is a public business establishment
81 / 88 / 89 / 101	The text of Penal Code § 490.5(f)(1) and Civil Code §§ 51(b), 51.5, 52(a) (statutory quotations only)
90, 92	The store is a "business establishment"; Plaintiff was a customer entitled to full and equal accommodations
10, 12, 15 (unanswered)	Ross operates the store and employed DOE 1; DOE 1 was LP/security personnel; DOE 1 acted within the course and scope of employment (deemed admitted, § 431.20(a))

Note the tension: Ross admits ¶ 57 (the "basis for stopping" Plaintiff) but denies ¶¶ 38–40 (blocking) and ¶ 44 (three minutes). Its defense will be that this was a brief, consensual question and not a confinement.

2.4 Key denials

Ross denies: blocking the exit and preventing departure (¶¶ 38–40, 42); the duration (¶ 44); DOE 1's statements (¶¶ 45, 47–50); that the drink was visible on entry (¶ 28, ¶ 30); race-based selection (¶¶ 70–76); lack of probable cause (¶¶ 80, 82–83); and every element of all three causes of action.

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3. Affirmative Defenses (16)

Standard. The answer must plead affirmative defenses with the same factual specificity as a complaint, *FPI Development, Inc. v. Nakashima* (1991) 231 Cal.App.3d 367, 384. A plaintiff may **demur** to an answer within 10 days after service for failure to state facts sufficient to constitute a defense, or for uncertainty (CCP §§ 430.20(a)–(b), 430.40(b)). A plaintiff may also **move to strike** irrelevant, false or improper matter (§§ 435–436). Mere denials labeled as "defenses," and "reservations" of future defenses, are not affirmative defenses.

#	Defense	Pleads facts?	Applies to these claims?	Rating (for Ross)	Recommendation
1	Shopkeeper's privilege (Pen. Code § 490.5(f); Civ. Code § 43.5)	No. It recites the statutory elements only and states no facts about what was	Yes to False Imprisonment (2nd); arguably to Negligent Training (3rd). It is **not a defense to Unruh** discrimination: a lawful basis to detain does not license race-	**Moderate on its face, but weak on the admitted facts.** Ross admits the "sole basis" was a drink carried in openly from next door,	Challenge for lack of facts, or at minimum demand the facts through FROG 15.1. Do not expect it to be eliminated; it will be the

#	Defense	Pleads facts?	Applies to these claims?	Rating (for Ross)	Recommendation
		observed.	based selection.	with no observed taking and no receipt request. *Fermino v. Fedco, Inc.* (1994) 7 Cal.4th 701 treats the privilege as limited to reasonable detention on probable cause.	central defense.
2	Failure to state a cause of action	No	This is not an affirmative defense. The objection is preserved anyway (§ 430.80).	Weak	Strike as improper or surplusage, or ignore. Low priority.
3	Accidental or unavoidable injury ("not negligent at the time of the accident")	No	Inapplicable. There was no "accident"; claims 1 and 2 are intentional. At most it is a denial of negligence on the 3rd claim.	Weak	Challenge.
4	Acts of other parties	No. No party is identified.	Limited. Respondeat superior makes Ross liable for DOE 1's acts.	Weak	Challenge. Ask through interrogatories who the "other parties" are.
5	Assumption of risk	No	Inapplicable. The doctrine applies to negligence and inherent-risk activities (*Knight v. Jewett* (1992) 3 Cal.4th 296). Shopping does not assume a risk of discriminatory detention.	Weak	Challenge.
6	Comparative negligence	No. No negligent act by Plaintiff is identified.	Not a defense to intentional torts or Unruh. Theoretically relevant only to the 3rd claim.	Weak	Challenge.
7	Exercise of reasonable care / no knowledge	No	This is a premises "notice" concept. It is only a denial of breach on the 3rd claim.	Weak	Challenge.
8	Failure of others to exercise care	No. It duplicates #4.	Same as #4	Weak	Challenge as duplicative.
9	Plaintiff's failure to exercise	No. It	Same as #6	Weak	Challenge as duplicative.

#	Defense	Pleads facts?	Applies to these claims?	Rating (for Ross)	Recommendation
	ordinary care	duplicates #6.			
10	Failure to mitigate	No. No mitigating step is identified.	Marginal for emotional-distress damages; it could become relevant to the claimed ongoing retail-avoidance damages.	Weak–Moderate	Challenge for lack of facts. Expect it to survive in some form if amended.
11	Lack of notice of "conditions"	No	This is a dangerous-condition premises defense with no fit here.	Weak	Challenge.
12	Lack of particularity	No	This is a pleading objection Ross waived by answering instead of demurring (§ 430.80).	Weak	Strike.
13	Reimbursement / offset	No. No source is identified.	The collateral source rule generally bars reducing tort damages by independent-source payments (*Helfend v. Southern Cal. Rapid Transit Dist.* (1970) 2 Cal.3d 1). You have no such payments.	Weak	Challenge or ignore.
14	Several liability for non-economic damages (Civ. Code §§ 1431.1–1431.2, Prop 51)	No	Prop 51 applies to comparative-fault apportionment. Courts have held an intentional tortfeasor cannot use it to reduce its share (*Thomas v. Duggins Construction Co.* (2006) 139 Cal.App.4th 1105). It is also of little use where Ross is vicariously liable for DOE 1, its own employee.	Weak (Moderate only as to the 3rd claim)	Challenge as to claims 1–2.
15	Uncertainty	No	Waived by answering (§ 430.80). It is not an affirmative defense.	Weak	Strike.
16	"Additional defenses" / reservation	No	A reservation is not a defense. New defenses require leave to amend.	Weak	Strike.

Bottom line: 15 of the 16 defenses are generic negligence or premises-liability boilerplate, apparently from a slip-and-fall form ("accident," "conditions," "notice," "DOCUMENTS provided," "claims for costs"). Only #1 is substantive.

Whether to challenge: - **Benefits:** - It narrows the case. - It forces Ross to commit to facts behind the privilege defense. - It removes noise from the jury instructions. - **Costs:** - It takes time, and the hearing is set by the court. - Leave to amend is usually granted. - Pressing the unanswered paragraphs prompts Ross to fix them. - **Recommended route:** a **narrow demurrer** limited to the affirmative defenses (and, if you choose, a motion to strike Defenses 2, 12, 15 and 16 and the fee prayer). Pair it with **FROG 15.1** discovery. - **Lower-cost alternative:** skip the motion. Serve FROG 15.1 and an RFA set, then use the boilerplate later in a summary-adjudication motion or motion in limine. Do not demur to the answer's unanswered paragraphs. Keep those admissions.

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4. Deadlines

4.1 Method of service

Every proof of service (answer, special interrogatories, form interrogatories, RFPs and jury-fee notice) is signed by Katherine Eng, dated Oct 15, 2026, and checks **both** boxes: **U.S. Mail** from San Francisco **and** electronic service to bnn.cdl@gmail.com. - Electronic service extends response periods by **2 court days** (CCP § 1010.6(a)(3)(B)). - Mail within California extends them by **5 calendar days** (CCP § 1013(a)).

When a paper is served both ways, the safe course is to assume the **shorter** extension (email) governs. Do not rely on the mail extension.

4.2 2026 court holidays used

Wed **Nov 11** (Veterans Day); Thu **Nov 26** and Fri **Nov 27** (Thanksgiving). If you plan to rely on Nov 27 as a non-court day, confirm on the Santa Clara court calendar; the dates below do not depend on it.

4.3 Computed dates

Item	Rule	Computation	Safe deadline	Latest arguable
Demurrer / motion to strike against the answer	§§ 430.40(b), 435(b)(1): 10 days after service	Oct 15 + 10 = Sun Oct 25 → next court day (§§ 12, 12a)	**Mon Oct 26, 2026**	Tue Oct 27 (Oct 25 + 2 court days for email); Fri Oct 30 (mail)
Meet-and-confer before demurrer	§ 430.41(a)(2): at least 5 days before the responsive pleading is due	5 days before Oct 26	**Wed Oct 21, 2026** (send the letter **now**; ask to talk by Oct 21)	—
Automatic 30-day extension if meet-and-confer is not completed	§ 430.41(a)(2): file and serve a declaration on or before the date the demurrer would be due	Declaration by Oct 26 → Oct 26 + 30	Declaration by **Mon Oct 26**; extended deadline **Wed Nov 25, 2026**	—
Meet-and-confer before motion to strike	§ 435.5(a) (same structure)	Same	Same	—

Item	Rule	Computation	Safe deadline	Latest arguable
Responses to Special Interrogatories, Set One	§ 2030.260(a): 30 days + § 1010.6	Oct 15 + 30 = Sat Nov 14 → + 2 court days (Mon Nov 16, Tue Nov 17)	**Tue Nov 17, 2026**	Thu Nov 19 (30 + 5 mail days)
Responses to Form Interrogatories, Set One	§ 2030.260(a)	Same	**Tue Nov 17, 2026**	Thu Nov 19
Responses to RFPs, Set One	§ 2031.260(a)	Same. Ross's own instructions say "35 days," which is Thu Nov 19.	**Tue Nov 17, 2026**	Thu Nov 19
Failure to timely respond	§§ 2030.290(a), 2031.300(a)	—	All objections, including privilege, are **waived**	—
Extension by agreement	§§ 2030.270, 2031.270	Ask in writing and confirm the new date in writing	—	—
Plaintiff's jury fee ($150)	CCP § 631(c)(2): on or before the date of the initial CMC	—	**Thu Feb 11, 2027** (pay earlier; a fee waiver may cover it)	—
CMC meet-and-confer	CRC 3.724: no later than 30 calendar days before the CMC	—	**Tue Jan 12, 2027**	—
CMC statement (CM-110)	CRC 3.725: at least 15 calendar days before the CMC	—	**Wed Jan 27, 2027**	—
Case Management Conference	—	—	**Thu Feb 11, 2027**, Dept. 16	—

Ross's posting of jury fees (Notice, Oct 15) preserves *its* jury right only. You demanded a jury, but you must post your own fee to preserve yours.

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5. Discovery Analysis

5.1 General issues common to all three sets

- **Definition of "YOU" (special interrogatories and form interrogatories).** It includes "your attorneys" and

"your insurance company." Object that it calls for **attorney-client privileged and work-product** information (Evid. Code § 954; CCP § 2018.030). As a pro per you have no attorney, so answer for yourself.

- **Prefatory instructions** in a non-form set conflict with **CCP § 2030.060(d)** (no preface or instruction unless approved as a form). Example: Special Instruction 13 ("If you cannot respond in full…"). This is a minor objection.
- **Number limit. 27 special interrogatories is within the 35 allowed by § 2030.030(a)(1).** No declaration for additional discovery (§ 2030.050) was needed or attached. Do **not** object on numerosity. Form interrogatories do not count toward the 35.
- **Waiver warning.** You must serve *timely* written responses, signed under oath (verified), to preserve every objection.

5.2 Special Interrogatories (27)

No.	Subject	Objections to consider	How to respond
1	Facts supporting detention	Contention interrogatory: proper (§ 2030.010(b))	Answer fully, using the admitted facts (**¶¶** 51–57).
2	Identify each person who detained you + conduct	Compound (identify + describe); § 2030.060(f)	Answer: DOE 1 (description); the cashier as a witness.
3	Every employee statement that conveyed you were not free to leave	None significant	"Did you pay for that drink?" / "Yeah, sometimes." / "I'm allowed to do that.", plus the physical positioning (non-verbal).
4	Physical touching	Compound (minor)	No touching (Ross already admits this). Confinement was by physical interposition.
5	Blocking, with subparts (a)–(d)	**Compound, with subparts**, in violation of § 2030.060(f)	Object, then answer.
6	Duration + "identify all facts"	Compound	About 3 minutes. Basis: your recollection, plus the timestamps on Ross's own video.
7	Start and end location	—	Answer precisely: near the registers and exit.
8	Whether and how you left	—	Answer carefully. Explain that you left only after DOE 1 stepped aside or the exchange ended.
9	Accused of theft? + identify + exact words	Compound	The accusation was implied: "Did you pay for that drink?" Be consistent with complaint ¶ 2.
10	Witnesses to false imprisonment	—	The cashier; the South Asian couple (unidentified); Ross video.
11, 12, 16	Facts showing race	Contention; overlapping. Object to "racial **animus**" in #16 as mischaracterizing the claim: Unruh	Answer with the ¶ 73(a)–(i) circumstantial factors. State that disparate-treatment evidence is in Ross's exclusive control and that discovery is

No.	Subject	Objections to consider	How to respond
	motivation / animus	requires intentional discrimination, not proof of animus (*Harris v. Capital Growth Investors XIV* (1991) 52 Cal.3d 1142).	continuing.
13	Any race comment	Compound	Answer honestly: no explicit racial comment (consistent with complaint ¶ 2).
14	Persons who observed discriminatory conduct	—	Same witnesses as #10.
15	Comparators	Compound	Answer on information and belief, as alleged in ¶¶ 73(i) and 74. Records of who was stopped are in Ross's possession.
17	Prior "INCIDENT" of discrimination at the store	**Vague or nonsensical**: "INCIDENT" is defined as *this* event, so a "prior INCIDENT" is internally contradictory	Object, then answer as reasonably construed (probably "none personally known").
18–20	Damages description, amount, calculation, documents	Emotional-distress damages are not susceptible to precise calculation	Describe the categories. State the Unruh minimum of $4,000 per offense and up to treble actual damages (Civ. Code § 52(a)). Say general damages are for the jury. **Do not disclose the internal damages worksheet** (work product / not a document supporting damages).
21	All persons with knowledge	—	Answer. Include Rachel De la Cruz (Ross's verifier).
22	All evidence incl. social media	Overbroad as to "relating to"; privacy as to unrelated content	Identify the Sprouts receipt, any notes, the complaint and any posts.
23–24	Recordings by you or someone on your behalf	"On your behalf" may reach privileged material	Answer truthfully (yes or no).
25–26	**Every lawsuit, claim, administrative complaint or demand ever made alleging discrimination / false imprisonment / civil rights**	**No time limit, overbroad, privacy** (Cal. Const. art. I, § 1; *Williams v. Superior Court* (2017) 3 Cal.5th 531 balancing). It reaches employment and governmental matters unrelated to retail detention. #25 also covers "demands" never filed.	**Important.** You have other matters (for example, *Ngwa Nforbi v. FedEx*), and Ross will likely try to portray you as a serial litigant. Object to scope, then answer as limited to the **past 10 years** (mirroring FROG 11.1) and to **filed actions and administrative charges**. Answer accurately; filed lawsuits are public, so an incomplete answer can damage your credibility.

No.	Subject	Objections to consider	How to respond
27	Statements about the incident	Privileged communications excluded	Identify public or third-party statements only.

5.3 Form Interrogatories (DISC-001): items checked

Definition 4(a)(1) (standard INCIDENT definition) was checked. Items checked: - **1.1 - 2.1–2.13** (all general background) - **4.1, 4.2 - 6.1–6.7 - 7.1–7.3 - 8.1–8.8 - 9.1, 9.2 - 10.1–10.3 - 11.1, 11.2 - 12.1–12.7 - 13.1, 13.2 - 14.1, 14.2 - 15.1**

Not checked: 3.x (business entity), 16.x (defendant contentions), 17.1 (no RFAs were served), 20.x (motor vehicle) and 50.x (contract).

Concerns: - **2.3–2.4 (driver's license / CDL):** irrelevant to a retail detention, but these are approved form items. Answer briefly. - **2.5–2.7 (5-year addresses, employment history, education):** answer. - **2.8 (felony convictions):** it is limited to felonies, and courts generally allow it as approved. Answer truthfully. If there are none, say "None." - **2.12–2.13 (disabilities; alcohol or drugs within 24 hours, including "medication of any kind"):** answer. A Celsius drink is not within it. - **4.1–4.2 (insurance):** these are aimed at defendants, so your answer is simply "No" or "Not applicable." No coverage applies to your claims. - **6.x, 10.x (medical history):** this is the main **privacy** fight. You claim **garden-variety emotional distress** (humiliation, anxiety, indignity) and have not alleged a diagnosed psychiatric injury. Object to 10.1–10.3 to the extent they seek unrelated medical or mental-health history (*Vinson v. Superior Court* (1987) 43 Cal.3d 833; *Britt v. Superior Court* (1978) 20 Cal.3d 844). If you have had **no treatment**, answer 6.4–6.7 "None." Treatment would put more of your history at issue. If you plan to claim ongoing severe distress or offer expert testimony, decide that before answering, because it affects how much privacy you can keep. - **7.x (property damage) and 8.x (lost income):** answer "No" or "Not applicable" unless you claim them. The internal worksheet does not claim lost income, and claiming it would open 8.2–8.8 financial discovery. - **11.1–11.2:** 11.1 covers personal-injury claims in the last 10 years. Answer accurately and consistently with Special Interrogatories 25–26. - **12.x–13.x (investigation and surveillance):** list witnesses and any photos. You may object to work product for your own litigation notes. - **14.1:** yes. Cite Pen. Code § 490.5(f), Civ. Code §§ 51, 51.5 and 52. - **15.1:** asks you to support each denial and affirmative defense in *your* pleadings. You have filed no answer, so respond "Not applicable; Plaintiff has filed no responsive pleading." **Serve FROG 15.1 on Ross yourself.** It is your best tool against the boilerplate defenses.

5.4 Requests for Production (24)

No.	Issue	Response
1–4	Documents referred to or relied on in interrogatory answers	Comply. Object to "relied upon" to the extent it reaches work product.
5–8, 10–14, 19	Contention-style "all documents supporting…" requests	Produce non-privileged documents: the **Sprouts receipt (copy, keep the original)**, photos of the store layout, and notes.
6, 24	Recordings	Produce any you have. If none, say so under § 2031.230 (statement of inability to comply, with the reason).
9	Your notes, diaries and journals about the	Work product only if prepared *for litigation*; contemporaneous

No.	Issue	Response
	incident	personal notes are likely discoverable. Produce, or log anything withheld.
15–17, 23	Statements, texts and social media about the incident	Discoverable to the extent it concerns the incident. Object to RFP 17 ("Defendant, the STORE," with no time limit) as overbroad. Limit it to Aug 25, 2026 to the present.
18	Communications with attorneys, investigators, advocacy groups and the press	Privileged communications are carved out. Object on work product, plus First Amendment and associational privacy as to advocacy groups. Produce press communications if any.
20, 22	All prior discrimination / false-imprisonment / civil-rights claims "by any business or entity"	**No time limit, overbroad, privacy.** Limit to 10 years and to filed retail-detention or public-accommodation claims, or offer case numbers only (public record).
21	Settlements and releases "relating to any claim identified in response to **RFP No. 26**"	**RFP No. 26 does not exist** (the set ends at 24). Object that the request is vague and unintelligible. Settlement agreements also often carry third-party confidentiality obligations.
—	Production format	Under § 2031.280, you may produce copies by the deadline. Bates-number them (e.g. NFORBI-0001) and keep a log.

Each RFP response must state, item by item, whether you will comply in whole or in part, cannot comply, or object (§§ 2031.210–2031.240). Withheld documents need a **privilege log** (§ 2031.240(c)). The response must be **verified**.

5.5 What to gather now

1. The **original Sprouts receipt** (8:45 p.m., Aug 25, 2026). Make a scan and keep the original safe. Get a Sprouts transaction record or bank or card statement for Aug 25, redacting unrelated items.
2. Your phone's **location history and photos** for Aug 25, 2026 (8:30–9:30 p.m.) to corroborate the timing.
3. Any **texts, emails or posts** about the incident from Aug 25 onward, especially within 72 hours (RFP 23).
4. Your **written account or notes** and when you made them.
5. Your **preservation-demand letter** to Ross and proof of its delivery (complaint ¶ 85).
6. A list of **all prior lawsuits and administrative charges** (past 10 years, with case numbers), for consistent answers to Special Interrogatories 25–26, FROG 11.1 and RFPs 20–22.
7. **Address, employment and education history** (FROG 2.5–2.7); driver's license or CDL details (2.3–2.4).
8. A decision on **medical treatment**: whether you have seen any provider for incident-related distress. This determines your 6.x and 10.x answers and how far you can maintain the garden-variety position.
9. Photos or diagrams of the **store's front, exit and register layout** (a lawful public visit only).
10. Any information identifying the **South Asian couple** or the **cashier**.

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6. Overall Assessment

6.1 What the answer reveals about Ross's defense theory

1. **No detention occurred.** Ross denies blocking (¶¶ 38–40, 42) while admitting no touching (¶ 41). Expect it to frame the encounter as a brief, voluntary question, which turns on its own video. Special Interrogatories 1–8 are aimed squarely at this point: where the employee stood, how long it lasted, and how you left.
2. **Fallback: the merchant's privilege.** Defense #1 argues that if there was a detention, it was on probable cause and reasonable. Ross's own admissions undercut this: the "sole basis" was the drink carried in openly from next door; there was no observed taking, no receipt request, no search and no recovery. Ross apparently will argue that the drink was *not* visible on entry (it denies ¶¶ 28 and 30) and that it "sometimes" sells Celsius. **The entrance video is decisive.** Ross admits cameras captured the incident, so you should obtain it promptly.
3. **No race motive.** Ross flatly denies ¶¶ 70–76. Special Interrogatories 11–17 and 25–26 show a plan to (a) emphasize that no racial remark was made and (b) explore your **litigation history** to suggest a pattern of claims.
4. **Damages minimization.** The extensive FROG 6.x, 8.x and 10.x items and the mitigation and offset defenses aim to test whether the emotional distress is real and caused by this incident.
5. **Low-effort pleading.** Slip-and-fall boilerplate, typos and a mis-cited subsection suggest Ross has not yet invested heavily in the case. That creates an opening for early leverage and, possibly, early resolution once the video is in hand.

6.2 Case strength

- **False imprisonment (2nd): strong.** The admissions establish the stop's sole basis and the absence of probable-cause indicia. Confinement and its duration are the disputed facts, and the video controls them.
- **Unruh (1st): moderate.** Intent must be proved circumstantially. Comparator and stop-log discovery and loss-prevention training records are essential.
- **Negligent training and supervision (3rd): moderate.** It depends on Ross's policies and training, which are discovery-dependent.

6.3 Recommended next steps (priority order)

1. **Calendar the deadlines now:** Oct 21 (meet-and-confer), Oct 26 (demurrer, motion to strike or § 430.41 declaration), Nov 17 (all discovery responses), Jan 12 and Jan 27, 2027 (CMC tasks), Feb 11, 2027 (CMC and jury fee).
2. **By Oct 19–20, email a meet-and-confer letter** to Shryock and Musni (draft it for your review; do not send without your approval). It should:
3. identify the § 431.30(d)/(e) problem, the "neither admit nor deny" responses, the unanswered ¶¶ 1–21 and 85–86, the Doe-answer issue, the verification, the fee prayer and the 15 boilerplate defenses;
4. ask Ross to withdraw Defenses 2–16 or plead facts;
5. ask whether counsel represents DOE 1, and if so, for her true name;
6. ask Ross to confirm preservation of all video (entrance, floor and exit cameras, 8:30–9:30 p.m.) and stop logs.

Tactical caution: pointing out the unanswered paragraphs invites an amended answer. Consider emphasizing the boilerplate defenses and the Doe and verification issues, and reserving the deemed-admission argument. 3. **Decide by Oct 26** whether to file a narrow demurrer or motion to strike against the affirmative defenses, or to file a § 430.41(a)(2) declaration to extend the deadline to Nov 25. 4. **Serve your own discovery promptly.** You may serve now; the plaintiff's 10-day hold under § 2030.020(b) and § 2031.020(b) has passed. Include: - **FROG** 1.1, 4.1, 12.1–12.7, 13.1–13.2, 14.1, **15.1**; - **special interrogatories** for DOE 1's identity and contact information, the cashier's identity, Rachel De la Cruz's title, the basis for the stop, whether Ross sold Celsius at that store on Aug 25, 2026, and stops at the store by

race; - **RFPs** for all video (8:30–9:30 p.m.), incident reports, loss-prevention policies and training (including outside-merchandise and receipt-check policies), DOE 1's training records, and inventory or sales records for Celsius; - **RFAs** locking in the admissions and the deemed-admitted ¶¶ 10, 12 and 15.

If DOE 1's name is produced, amend under CCP § 474. 5. **Prepare discovery responses** (drafts by about Nov 10). Assert objections as outlined, answer substantively, verify the responses, and serve by **Nov 17**. If you need time, request a written extension early. 6. **Pay the $150 jury fee** (or confirm fee-waiver coverage) well before Feb 11, 2027. 7. **Prepare for the CMC:** include the video and policy discovery plan, a request for a protective order if Ross seeks confidentiality, and ADR position (mediation after the video is exchanged).

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7. Authorities Cited

- **Code of Civil Procedure:** §§ 12, 12a; 430.20; 430.40(b); 430.41; 430.80; 431.20(a); 431.30(b), (d), (e), (g); 435; 435.5; 436; 446; 474; 631(c); 1010.6(a)(3)(B); 1013(a); 2016.060; 2018.030; 2030.010–2030.290; 2031.010–2031.300.
- **Civil Code:** §§ 43.5, 51, 51.5, 52, 1431.1–1431.2. **Penal Code:** § 490.5(f). **Evidence Code:** § 954. **California Constitution:** art. I, § 1. **California Rules of Court:** 3.724, 3.725.
- **Cases:**
- *FPI Development, Inc. v. Nakashima* (1991) 231 Cal.App.3d 367
- *Fermino v. Fedco, Inc.* (1994) 7 Cal.4th 701
- *Harris v. Capital Growth Investors XIV* (1991) 52 Cal.3d 1142
- *Knight v. Jewett* (1992) 3 Cal.4th 296
- *Helfend v. Southern Cal. Rapid Transit Dist.* (1970) 2 Cal.3d 1
- *Thomas v. Duggins Construction Co.* (2006) 139 Cal.App.4th 1105
- *Vinson v. Superior Court* (1987) 43 Cal.3d 833
- *Britt v. Superior Court* (1978) 20 Cal.3d 844
- *Williams v. Superior Court* (2017) 3 Cal.5th 531

Verify all citations and current statutory text before filing.